

An award of monetary sanctions must be “reasonable under the circumstances” *Mattco Forge, Inc. v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1437; Code Civ. Proc., § 2023.030(a) (monetary sanctions may be awarded to compensate a party for reasonable expenses). “The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award.” *Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 791.

Based on information appearing in the Avansino declaration, the monetary sanctions requested by Defendant reflect 8.2 total attorney hours to draft the discovery motion, and an anticipated 2 hours to review the opposition and prepare a reply, and attend the hearing. Avansino Decl., ¶¶ 22-24. No opposition was filed in this matter and correspondingly no reply was submitted. Thus, no award of fees on that basis is warranted. Likewise, the *prospective* time to prepare and present the motion for hearing is speculative and unwarranted based on the current procedural posture. The Court also finds the time expended by counsel to prepare the discovery motion excessive. Therefore, the Court grants sanctions in the amount of six (6) hours of work at a rate of \$350/hour, for a total of \$2,100, plus the filing fee of \$60, for a total amount of sanctions of \$2,160.00.

7. CU0002810 Daniel Dion et al vs. Dana May Dion

Plaintiff’s motion to change venue is granted. Venue shall be changed to Sonoma County, California. Plaintiffs shall have thirty (30) days to pay the statutory transfer fees to perfect the transfer to Sonoma County. If said fees are not paid within thirty (30) days of the entry of this Order, the instant case shall be dismissed.

8. CU0002546 Joann Pennington et al vs. Tahoe Forest Hospital District dba Tahoe Forest Hospital D/P SNF et al

Petitioners’ petition for relief from Government Code Section 945.4 pursuant to Government Code Section 946.6 is denied.

Legal Standard

Government Claims Presentation

“A claim relating to a cause of action for death or for injury to person or to personal property or growing crops shall be presented as provided in Article 2 (commencing with Section 915) not later than six months after the accrual of the cause of action. A claim relating to any other cause of action shall be presented as provided in Article 2 (commencing with Section 915) not later than one year after the accrual of the action.” Gov. Code § 911.2(a). “When a claim that is required by Section 911.2 to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim.” Gov. Code § 911.4(a). “The board shall grant or deny the application within 45 days after it is presented to the board.” Gov. Code § 911.6(a). “If the board fails or refuses to act on an application within the time prescribed by this section, the application shall be deemed to have been denied on the 45th day...” Gov. Code § 911.6(c).

Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division.

Gov. Code § 945.4.

The applicable portions of Government Code section 946.6 provides:

- (a) If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the Petitioner from Section 945.4. The proper court for filing the petition is a superior court that would be a proper court for the trial of an action on the cause of action to which the claim relates. If the petition is filed in a court which is not a proper court for the determination of the matter, the court, on motion of any party, shall transfer the proceeding to a proper court. If an action on the cause of action to which the claim relates would be a limited civil case, a proceeding pursuant to this section is a limited civil case.
- (b) The petition shall show each of the following:
 - (1) That application was made to the board under Section 911.4 and was denied or deemed denied.
 - (2) The reason for failure to present the claim within the time limit specified in Section 911.2.
 - (3) The information required by Section 910.

The petition shall be filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6.

(c) The court shall relieve the Petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable:

- (1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the Petitioner from the requirements of Section 945.4.

....

(6) The person who sustained the alleged injury, damage, or loss died before the expiration of the time specified in Section 911.2 for the presentation of the claim.

(d) A copy of the petition and a written notice of the time and place of hearing shall be served before the hearing as prescribed by subdivision (b) of Section 1005 of the Code of Civil Procedure on (1) the clerk or secretary or board of the local public entity, if the Respondent is a local public entity, or (2) the Attorney General, if the Respondent is the state.

....

(e) The court shall make an independent determination upon the petition. The determination shall be made upon the basis of the petition, any affidavits in support of or in opposition to the petition, and any additional evidence received at the hearing on the petition.

(f) If the court makes an order relieving the Petitioner from Section 945.4, suit on the cause of action to which the claim relates shall be filed with the court within 30 days thereafter.

Gov. Code § 946.6.

Service of Petition

A copy of the petition and a written notice of the time and place of hearing shall be served before the hearing as prescribed by subdivision (b) of Section 1005 of the Code of Civil Procedure on (1) the clerk or secretary or board of the local public entity, if the respondent is a local public entity....” Gov. Code, § 946.6(d). In addition, service of the petition must be “effected in the same manner as service of summons in order to give the court jurisdiction to enter an order against the public entity.” *Thierfeldt v. Marin Hosp. Dist.* (1973) 35 Cal.App.3d 186, 200.

Analysis

Government Claims Act

While there are several deficiencies with the arguments presented by Petitioners, the most glaring deficiency is Petitioners’ argument is premised on the assertion that the claim was *not* late filed. Rather than requesting that the court excuse a late claim, Petitioner is asking this court to determine that the claim was timely filed. Such is not the proper purpose of a petition pursuant to Government Code section 946.6. Rather, the section, assumes that the claim was late filed and requires, under subdivision (c) (1)-(6), that the Petitioner demonstrate one or more of six enumerated factors are applicable to the late filing of the claim in order to excuse the late filing.

When, and to whom, a cause of action accrues is generally a question of fact for the trier of fact, not a question of law. See *Krusi v. S.J. Amoroso Construction Co.* (2000) 81 Cal.App.4th 995, 1006. “A proceeding under section 946.6 is not a trial of the action itself and the court in those proceedings has no more power than would the court handling the action itself to grant what amounts to a summary judgment so long as there are triable issues of fact concerning whether or

not the claims statutes were complied with.” *Ngo v. County of Los Angeles* (1989) 207 Cal.App.3d 946, 951. “The procedure set forth in section 946.6 is simply an avenue of relief similar to Code of Civil Procedure section 473 in providing relief from default [citation], and is not designed to resolve the issue of actual compliance with the claim filing requirements.” *Ibid.* “A trial court’s granting of relief under section 946.6 is not a determination of compliance but one of excusing compliance.” *Ibid.* “Petitioners are, however, free to proceed on a complaint which properly pleads compliance with the claims statute . . .” *Id.* at p. 952.

Petitioners also argue Tahoe Forest Hospital District did not respond to Petitioners’ Government Claim, constituting a waiver of any defense regarding timeliness, and untimely responded to Petitioners’ application for leave to present a claim. Johnson Decl., ¶¶ 3, 4. Again, this is not the function of a petition under Government Code section 946.6. The sole purpose of a petition brought under the Code section is to relieve a party from their failure to present a timely Government Claim, not to make a finding of fact that the government entity did not properly reply.

Petitioners have not met their burden under Government Code section 946.6. The petition will be denied.

Service

A further deficiency in the Petition is the failure of Petitioners to meet the service requirements of the statute. While the “court has jurisdiction over the subject matter, but the question here is the manner in which the court is to attain jurisdiction over the person whom its judgment will affect. It would appear that personal service, or its equivalent, as provided for the service of process in civil proceedings should be necessary.” *Thierfeldt, supra*, 35 Cal.App.3d at 198. Service of summons by mail authorized by Code of Civil Procedure § 415.30 “predicates the efficacy of such service upon the execution and return of an acknowledgement of service.” *Ibid.* Additionally, a “A copy of the petition and a written notice of the time and place of hearing shall be served before the hearing...on (1) the clerk or secretary or board of the local public entity, if the respondent is a local public entity....” Gov. Code § 946.6(d)(1).

At bar, the Petition was served by mail, with no returned acknowledgment of service, on: Tahoe Forest Hospital District; County of Nevada, Clerk of the Board of Supervisors; Tahoe Forest Hospital District, Director of Quality and Regulations. POS, filed 7/20/26. There is no indication the Petition was served on the “clerk or secretary or board of the local public entity”.

9. CU0002903 Annette Merriman et al vs. Daniel Fraiman Construction et al

On the Court’s motion, Petitioners’ unopposed petition to confirm contractual arbitration award is continued to October 12, 2026, at 1:30 p.m. in Department A.

Legal Standard

Once arbitration is concluded, “any arbitrator’s award is enforceable only when confirmed as a judgment of the superior court.” *O’Hare v. Municipal Resource Consultants* (2003) 107 Cal.App.4th 267, 278. Any of the parties may file a petition with the court, which must then